



Policy analysis

Prolonged gray wolf endangered species act listing fluctuation and policymaker response in the United States

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1. Introduction

Gray wolves have endured a long and tumultuous history in the United States. After being nearly completely extirpated from the lower 48 states by the mid 1900s—save a small population in the Great Lakes region—wolves were given federal protection in 1973 under the Endangered Species Act (ESA) (Bergstrom et al., 2009). During the following years, gray wolves from Canada continued to naturally disperse into northwestern Montana and Minnesota. Building on the positive public sentiment towards the ESA and gray wolves, the United States Fish and Wildlife Service (USFWS) reintroduced a small population of gray wolves into Yellowstone National Park in 1995. Wolf recovery in both regions went remarkably well. In the Western Great Lakes (WGL) region (Minnesota, Michigan, Wisconsin), the wolf population reached 4500 (https://www.biologicaldiversity.org/campaigns/gray_wolves/). The Northern Rocky Mountain Region (NRM), which is comprised of Yellowstone National Park, Wyoming, Montana, Idaho, and small parts of Utah, Washington and Oregon, has a population of around 1700 wolves. While the reintroduction of the gray wolf is an overall success story for the Endangered Species Act (ESA), and led to flourishing wolf populations in the Midwest and Northwest, a different type of instability has manifested in the past decade.

From 2007 to 2017, gray wolves—or at least some population segment of gray wolves—have had their status (listed, delisted) changed under the ESA sixteen times. These changes have been confusing and costly for federal and state governments, interest groups, and citizens. While the fluctuation has been noted by journalists and scholars, little research has been done on why it occurred and the recent policymaker response.

This paper is divided into four main sections. First, to properly understand the complex series of listing decisions, as well as identify who is responsible for the fluctuation, the paper begins with a recap of the most intense period of listing fluctuation from 2008 to 2012. The USFWS is the agency that controls the listing and delisting of animals under the ESA. While ESA implementation is a complex process that often involves federal courts and the USFWS—the extreme fluctuation in the case of the gray wolf is unique. Most of these listing changes occurred after federal courts, through judicial review, overturned arbitrary and improper delisting rules authored by the USFWS. Congress

has also gotten involved by legislatively delisting the NRM Gray Wolf in 2011 through an appropriations bill rider. As this paper will discuss, these agency delistings were premature, inconsistent with the law, and contradicted the agency's original goals for reintroduction.

Second, the analysis takes a step back to view these cases more broadly. In an attempt to understand the complex interplay of government entities as well as the realities of ESA implementation, I draw on the theory of adversarial legalism. Scholars have long noted the distinctive adversarial character of American law in which litigation and judicial review play a prominent role in policy formulation. Scholars have noted that this style can be costly and inefficient (Kagan, 1991; Verweij, 2000). The gray wolf case is a product of this adversarial style, as it exhibits many of the problems identified in the literature on adversarial legalism: irresolution of the original issue, legal uncertainty and inconsistency, and policy shaped by judicial review (Kagan, 1991). Much of the scholarship on adversarial legalism identifies the burden caused by excessive litigation and focuses on the role of lawyers, litigants, and expansive legal standing in perpetuating this system. However, this paper discusses how federal agencies can be complicit in this adversarial system as well.

Thus, one question the paper seeks to answer, based on scholarship on adversarial legalism, is the following: why did the USFWS continually publish rules that were inconsistent with the law and could possibly be overruled by judicial review? While some administrative law scholars suggest that agencies have strong incentives to avoid litigation (Potter, 2017; Nou, 2013), other scholarship suggests that agencies have incentives to enter into litigation. Coglianese (1996) suggests that agencies view litigation not as a last resort, but as an extension of the deliberation and negotiation process with industry and environmental groups. He also suggests that litigation can provide them with certain rulemaking advantages (Coglianese, 1996). Furthermore, an investigation into a political appointee to the USFWS in 2006 shows that the USFWS had a practice of approving the publication of rules to the Federal Register with prior knowledge that the rules had legal flaws.

Third, this paper identifies other possible motivations for the delisting of the gray wolf. The USFWS monitors endangered species populations and determines when they have recovered. Officially, political and economic considerations are not allowed to be considered during listing assessments. The Administrative Procedure Act of 1946

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(APA) states that rules that are “arbitrary, capricious, [or] an abuse of discretion” are to be found unlawful in judicial review. As such, agencies must justify their decisions with scientific rather than political or economic reasoning. By 2007, wolves had surpassed their recovery goals in regards to population. Thus it made sense for the USFWS to be considering delisting the gray wolf. However, as this paper will discuss in more detail, there were other scientific and legal requirements for delisting, such as evidence of genetic exchange between subpopulations and adequacy of state plans, which were insufficient. Nonetheless, the USFWS went ahead with the delisting. This section will discuss the politicization of science that was occurring in the USFWS around the time of delisting. This controversy resulted in the resignation of a political appointee after charges of politicization of science and improper use of non-public information. Also, notably, these delisting decisions occurred despite multiple studies suggesting that the public viewed wolves favorably—even in states with wolf populations (Bruskotter et al., 2018; Meadow et al., 2005; Williams et al., 2002).

Lastly, this paper analyzes the recent response of policymakers to listing controversies like the gray wolf and other ESA concerns. In response, certain policymakers have attacked environmental groups for “hijacking” the ESA with excessive litigation, and some have mentioned the gray wolf specifically (<https://westerncaucus.house.gov/issues/issue/?IssueID=14890>). This reaction, at least from the perspective of the gray wolf saga, mischaracterizes the conflict. Instead of investigating why the USFWS prematurely delisted wolves, or how the system can encourage arbitrary rulemaking and provide remedies for these issues, certain policymakers have myopically focused on one side of the broader conflict—environmental interest groups. Notably, multiple studies suggest that environmental groups are overshadowed by industry in terms of rulemaking litigation—especially when industry groups can form coalitions (Nelson and Yackee, 2012; Coglianese, 1996; Yackee and Yackee, 2006; West and Raso, 2013). The legislation includes bills that would preclude judicial review (H.R. 6356; H.R. 6355; H.R. 6147; S. 831; S. 614); restrict or eliminate possible federal reimbursement for attorney’s fees (H.R. 6147 House Amendment 933); and forcibly delist WGL wolves and wolves in the lower 48 (S. 831; H.R. 6784); Other legislation includes bills that would automatically elevate tribal, county, and state scientific studies to be considered a part of the “best scientific and commercial data available” regardless of actual quality, and heavily prioritize states in the decision to list new species (S. 502; H.R. 6345).

The overhaul has also come from the executive branch. In August of 2019, the USFWS implemented new rules that allow economic assessments to be made during the consideration of the listing of new species (<https://www.doi.gov/pressreleases/endangered-species-act>). While the administration maintains that these economic assessments would be for informational purposes only, and would not play a role in the listing decision, the creation of these reports has the potential to set the USFWS on a path towards viewing the protection of species in terms of dollars and cents, which would likely increase opposition to the listing of new species.

2. Recap of listing fluctuation: 2007–2013

The long period of fluctuation began late in the Bush administration’s final term and would continue throughout President Obama’s two terms. In February 2008, the USFWS officially delisted the NRM gray wolf from the Endangered Species Act for the first time (Federal Register 73 no. 39, 2008). They claimed that the NRM DPS population had reached and exceeded the recovery goals—at least 300 wolves in the 250,000-km recovery area for nine consecutive years (Bergstrom et al., 2009).

Shortly after, Defenders of Wildlife and other environmental interest groups sued the USFWS. Later, on July 18, 2008, federal judge Donald Molloy in Montana issued a preliminary injunction on the USFWS delisting. Agreeing with the arguments presented by Defenders of

Wildlife, Judge Molloy emphasized that the genetic connectivity, another requirement for delisting, between wolves in Idaho, Montana, Wyoming, and Yellowstone, had not been reestablished (Defenders of Wildlife v. Hall, 2008). The Service would later withdraw the delisting rule. The genetic connectivity requirement was designed to allow these distinct wolf populations to be large and pervasive enough that they would mix in with other populations in other states and eventually Canada. Genetic connectivity is essential in maintaining genetic diversity. Since there were only 31 wolves originally reintroduced into Yellowstone, if the wolves did not intermix with other wolf populations the resultant population could eventually suffer from low genetic diversity. Genetic diversity allows for more variation in the gene pool of a species, which can make the species more resilient to disease and a changing environment. Scientists hoped that the newly released wolves would eventually intermix, but the delisting threatened that possibility (Bergstrom et al., 2009).

After a separate court case related to the delisting of WGL DPS wolves also went against the USFWS, the USFWS issued a final corrected rule that relisted the NRM and WGL DPSs’ gray wolves in December of 2008 (<https://ecos.fws.gov/ecp0/profile/speciesProfile?spcode=A00D>). The effect of these decisions by Judge Molloy of the Montana court and Judge Paul Friedman of the Federal District Court in the District of Columbia proved to be only temporary. On January 14, 2009, the outgoing Bush administration attempted to delist both NRM and WGL wolves (besides Wyoming). This delisting attempt came less than a month after the final rule that relisted both DPSs. This decision was postponed by the Obama administration briefly but eventually was approved by the new DOI Secretary Ken Salazar in early April of 2009 (Bergstrom et al., 2009). In the case of the WGL DPS wolves, the USFWS had been ordered to fix a procedural error, so it made sense that the USFWS would not have had to wait a long time to issue another delisting rule (although that too would be rescinded due to another procedural error). However, the delisting decision was more difficult to justify in the case of the NRM DPS. As stated earlier, the USFWS was forced to relist mostly because of a lack of genetic connectivity between wolves, and also partly because of Wyoming’s poor state protection plan (Defenders of Wildlife v. Hall, 2008). It seems quite unlikely that, within less than a month, genetic connectivity would have been established. Nonetheless, the USFWS delisted the NRM DPS (except Wyoming), claiming that its exclusion of Wyoming in the delisting order would solve the problem.

The delisting again drew the ire of environmental groups and scientists. One study titled *The Northern Rocky Mountain Gray Wolf Is Not Yet Recovered* by Bergstrom et al. (2009), condemned the new administration and Interior Secretary Ken Salazar for not seeking independent scientific review. The authors went on to state that this new rule does nothing to address the inadequacy of the previous rule—lack of genetic connectivity. The authors refuted this new rule on other grounds as well. They cited a 2004 letter the USFWS itself wrote which stated that proceeding with a partial delisting (e.g. in Idaho and Montana, but not Wyoming) before the entire DPS was recovered, was illegal (Bergstrom et al., 2009).

Just a few months after the April 2009 delisting rule, on July 1st, 2009, the USFWS settled in litigation regarding the WGL DPS and withdrew its rule resulting in the WGL DPS being relisted. Then, one year later, on August 5th, 2010, Judge Donald Molloy again ruled that the NRM DPS should be recategorized as endangered after a successful challenge by Defenders of Wildlife (Federal Register 75 no. 206, 2010). The issue of genetic connectivity was “subsumed” by an even larger error: already a small subdivision of species, DPSs were not intended to be split again into subpopulations in which some are protected and some are not (Defenders of Wildlife v. Salazar, 2010). Following this ruling, the USFWS relisted the NRM DPS in October of 2010. At this point, both the NRM and WGL DPSs were listed again.

Then, just over 7 months later on May 5th, 2011, in a last-minute rider to an appropriations bill (later referred to as Section 1713),

Congress ordered the USFWS to reinstate the final delisting rule that was published on April 2, 2009. This rule, of course, had been overruled previously by the Montana District Court as a violation of the ESA. Congress justified this discrepancy by writing that the reissuance of the rule was to be done “without regard to any other provision of statute or regulation that applies to issuance of such rule” (*Alliance for the Wild Rockies v. Salazar*, 2012). Essentially, Congress stated that the delisting rule must be reinstated without regard to the ESA. The legality of Section 1713 would soon face legal challenges.

2.1. Analysis of the legality of Section 1713

Some viewed Section 1713 as illegal because they believed that it issued a rule that resolved pending litigation, which the Supreme Court in *United States v. Klein* (1871) found to violate the separation of powers clause. The August 5th, 2010 ruling by Judge Donald Molloy which relisted the gray wolf due to the improper division of the DPS, had been appealed to a higher court, and was thus pending litigation. As such, Section 1713 reissued a regulation that was still under judicial review. In *US v. Klein* the Supreme Court found that it is an overreach of legislative authority when legislation dictates or decides the result of pending litigation; Congress cannot “prescribe a rule for the decision of a cause.” The new separation of powers case was fought along these grounds. Had Congress usurped the power of the judicial branch by signing legislation that, in effect, mooted a pending case? Subsequent case law would be the deciding factor.

Robertson v. Seattle Audubon Society (1992) later notched out an exception to the rule provided in *US v. Klein*. *Robertson* states that while legislation might affect pending litigation, if the legislation amends the underlying law instead of making findings of law or fact, or specifically compelling a decision in the pending case, that legislation does not violate the separation of powers clause. Judge Molloy, somewhat begrudgingly, would apply *Robertson* and uphold the legality of the Congressional delisting.

Although there is no mention of the ESA in the actual text of Section 1713, due to binding precedent from another case, Judge Molloy interpreted Section 1713 as an amendment to the ESA rather than legislation designed to moot a pending case. Based on *Robertson* and Ninth Circuit precedent, *Consejo de Desarrollo Económico de Mexicali*, Judge Molloy ruled that Congress had amended the ESA (the underlying law) “through implication.” Judge Molloy writes, “By directing the Secretary of the Interior to reissue the delisting rule ‘without regard to any other provision of statute or regulation,’ they argue the rider amended any statute that would prevent its issuance” (*Alliance for the Wild Rockies v. Salazar*, 2011). Essentially, because of the phrase (“without regard to.... regulation”), Section 1713 was required to be viewed as an implied amendment to the ESA insofar as a specific agency action; the rest of the ESA would remain untouched, but the delisting rule must be reinstated. Judge Molloy’s reluctance to accept this interpretation is understandable. Taken literally, the logic of the language of Section 1713 is the following: A (the delisting rule) should not be affected by B (the ESA). Therefore, B (the ESA) is amended to reflect A (the delisting rule). Moreover, A and B are, on their faces, incompatible in goals and purpose.

Judge Molloy explained the cognitive dissonance and contortions inherent in his own ruling: “Structurally the doctrine of Separation of Powers is still viable, but in my view it is violated when there is an effort to change a political policy by resolution that is not clear, does not identify what law is specifically being changed, does not state what rules apply in the future, and is inconsistent with the underlying political purposes of the law that is being changed” (*Alliance for the Wild Rockies v. Salazar*, 2011). Judge Molloy highlighted another problem with this interpretation—it created an ambiguity in the ESA. Because there was no literal amendment of the ESA, just an “implied amendment,” future courts would not know whether to apply their ordinary rules or to apply the modified version created by this ruling.

Nonetheless, Judge Molloy upheld the law, and the Ninth Circuit would later affirm his decision on similar grounds. Since then, the NRM DPS has remained delisted. The listing of the WGL DPS has fluctuated numerous times since then. For the sake of brevity, those cases have been excluded from this paper.

3. Listing fluctuation in the context of adversarial legalism

This section of the paper is intended to step back and view the gray wolf saga from a broader perspective—through the lens of the theory of adversarial legalism. Robert A. Kagan, in his seminal work *Adversarial Legalism and American Government*, took a comparative look at the United States’ legal system to highlight its uniquely combative and litigious style—which he termed “Adversarial Legalism.” His description of this system was the following: “the United States is uniquely prone to adversarial, legalistic modes of policy formulation and implementation, shaped by the prospect of judicial review” (Kagan, 1991). He deemed that the consequences of this particular legal style were lengthy and costly legal disputes and economic inefficiency resulting from the abundance of judicial review (Kagan, 1991). The emphasis on litigation and judicial review would result in distorted policy (Kagan, 1991). Kagan used a case study of the proposed dredging of the Port of Oakland and the attempt to navigate the immense environmental regulation and fragmented sources of bureaucratic power to show the inefficiencies of the process. He contrasts this with European systems that have stronger national bureaucracies that are directly responsible to political leaders and systems in which judicial review plays a much less prominent role in the formulation of policy (Kagan, 1991).

His theory on the origins of adversarial legalism is worth noting. He wrote that adversarial legalism and its consequences had increased in recent decades (pre-1991) because after the egalitarian movement of the 1960s and 1970s, Americans had begun to demand a more activist government with more protection and oversight into the environment, consumer protection, and health and civil rights (Kagan, 1991). This more activist style of governance was forced onto an existing political structure and culture. Kagan describes this political structure and culture as a deeply fragmented source of power both vertically and horizontally and a body politic imbued with a “deep suspicion of governmental authority” (Kagan, 1991). What has resulted is that of hammering a square peg into a round hole:

“Americans have attempted to articulate and implement the socially transformative policies of an activist, regulatory welfare state through the legal structures of a reactive, decentralized, non-hierarchical governmental system. In the absence of a strong, respected national bureaucracy, proponents of regulatory change and social welfare measures have advocated methods of policy implementation that emphasize citizens’ rights to challenge and prod official action through litigation.”

(Kagan, 1991)

The only manner in which an activist style government can be maintained, while keeping the existing structures of fragmentation of power and distrust in authority, is through empowering private citizens and organizations to hold agencies accountable through litigation and judicial review. He maintains that many European countries and other nations like Japan, are able to maintain more activist governments because of a stronger, centralized bureaucracy that is less subject to judicial review, and exists amidst a political culture less distrustful of centralized authority.

The gray wolf listing fluctuation seems to be a product of this adversarial system. It is indeed symptomatic of many of the “pathologies” of the adversarial system described in Kagan’s work: legal uncertainty and inconsistency, distorted policy outcomes, legal complexity, reliance on judicial review, and irresolution (the fate of WGL wolves is still uncertain) (Kagan, 1991). Scholars have noted the costs of these pathologies, and many have focused on the role of the expansion of

legal standing, interest groups, and lawyers in exacerbating this adversarial system (Kagan, 1994; Verweij, 2000; Grossman, 2014; Yaffa, 2018). Kagan's article (1994) titled "Do Lawyers Cause Adversarial Legalism? A Preliminary Inquiry" suggests that the legal profession does indeed play a significant role in perpetuating this system. However, it is also worthwhile to analyze agency motivation in the context of adversarial legalism. Why did the USFWS consistently publish rules that contradicted internal agency policy and were likely to be deemed arbitrary and capricious by courts? Also, more generally, how do the motivations of agencies change in this adversarial system? In *Adversarial Legalism and American Government*, Kagan writes that governments become legally defensive and litigation avoidant. However, other scholarship on adversarial legalism suggests otherwise. Further investigation shows the complicit role that federal agencies—and the USFWS specifically—can play in this system.

3.1. Identifying federal agencies' role in the adversarial system

While some scholars highlight the incentives for agencies and agency leaders to avoid litigation (Potter, 2017; Nou, 2013; Kagan, 1991), other scholars have recognized the incentives for agencies to willingly enter (or, at the very least, not avoid at all costs), litigation disputes. This literature provides us with another potential explanation for the repeated delisting by the USFWS. Professor Cary Coglianese (1996), in *Litigating within Relationships: Disputes and Disturbances in the Regulatory Process*, suggests that agencies are unlikely to become litigation averse because they view litigation as a continuation of the rulemaking negotiation process, and because agencies can benefit in various ways from litigation. Coglianese (1996) also suggests that litigation has become so normalized that relationships between interest groups and the agencies they are suing are not hurt by the litigation: "Agency staff similarly expressed little resentment about having a rule challenged." As one EPA attorney put it, "It is not considered a failure." While this evidence anecdotally shows that some agencies are not put off by the thought of potential litigation, Coglianese (1996) also provides empirical evidence of this notion. He writes that, between 1979 and 1990, the "settlement rate for EPA rule challenges in the DC Circuit (47%) is nearly twice that for all appeals (25%) and substantially more than the rate for all administrative appeals (28%)." Other scholars have also noted that settlement has become an essential strategy for some federal agencies (Rossi, 2001; Grossman, 2014).

Moreover, Coglianese (1996) identifies three main ways agencies benefit from litigation: it can allow the agency to escape a deadline, decrease the number of interest groups in the negotiation process which can "change the dynamics of bargaining," and lastly, it can allow the agency to "negotiate in secret"—something they are unable to do during formal rulemaking. However, the literature does not address how these positive incentives for agencies to enter litigation disputes might affect their rulemaking.

We can at least relate Coglianese's first finding (escape a deadline) to the USFWS. In 2006, the Office of the Inspector General conducted an investigation into political appointee Julie MacDonald. At the time, she was the Deputy Assistant Secretary of Fish, Wildlife, and Parks. She was accused of political interference in USFWS scientific work and improper handling of non-public data. In addition to discussing MacDonald's actions specifically, the report also identifies standard agency practices. Most relevant to this paper, it shows how the agency was cognizant of legal flaws in their rules at the time of publication. It describes an interview with the Assistant Solicitor for Fish and Wildlife:

"Since the Bush Administration came into office in 2001, DOI senior management has conducted a balancing of risk factors involved with sending ED [Endangered Species] and CHD [Critical habitat designations] rules to the Federal Register with the knowledge that there are legal problems with the packages. Obviously, he said, the Assistant Secretary's Office policy agenda involves a certain amount

of litigation risks and they are prepared to absorb expected losses."

In sum, even though the agency department heads knew that some final rules were on shaky legal ground, they were approved and sent to the federal register anyway. Why would this happen? The investigation report confirms that deadlines were an issue. The report states on numerous occasions that the pressure to respond in a timely fashion to court ordered demands for rules is a large reason for why there were legal problems with rules sent to the Federal Register. The report also conveys their opinion that "[t]hey do not have the budget to constantly conduct ED and CHD reviews under court deadlines, in addition to carrying out their normal duties" (Investigative Report, 2006). Thus, budgetary and time constraints likely affect the quality of the rules agencies make. Moreover, agencies, knowing that litigation offers them a chance to escape a deadline and negotiate in secret, might not be as incentivized to ensure that their rules are legally and scientifically sound. This practice, of course, would encourage (justifiable) legal challenges from interest groups and stakeholders, thus increasing the adversarial nature of the system. The role that federal agencies play in increasing the adversarial nature of American law warrants more study.

4. Other possible agency motivations for delisting

A few scholars have asserted that politics, rather than appropriate scientific or legal analysis, has been an influential factor in USFWS rulemaking (Bergstrom et al., 2009; Bruskotter et al., 2018). The reasoning for this conclusion primarily comes from a survey conducted by the Union of Concerned Scientists (UCS) and the Investigative Report by the Office of the Inspector General. In 2005, the UCS conducted a survey of 1400 scientists across the country working in USFWS field offices. When asked how the USFWS could best improve the integrity of its work, the most common response (32%) among the respondents was the removal of "politics/political influence over scientific decisions" (UCSa, 2005a). One in five reported receiving direct communication to "inappropriately exclude or alter technical information from a USFWS scientific document, such as a biological opinion," and 70% of staff scientists and 89% of scientist managers knew of cases in which political appointees "injected themselves into Ecological Services determinations" (UCSb, 2005b). According to the respondents, these political intrusions had a negative effect on USFWS wildlife protection. While many respondents insisted it was a larger, cultural problem at the USFWS, multiple respondents specifically mentioned the influence of Julie MacDonald. In reference to MacDonald, one respondent wrote, "I have never before seen the boldness of intimidation demonstrated by a single political appointee... I believe there should be a thorough investigation of her abuse of discretionary authority and modification of science information provided in FWS documents" (UCSa, 2005a). This investigation was soon carried out by the Office of the Inspector General. The report found that MacDonald "had been heavily involved with editing, commenting on, and reshaping the Endangered Species Program's scientific reports from the field" even though she was unqualified to do so as she had no formal education in the natural sciences (Investigative Report, 2006).

Nothing in the review mentions that MacDonald influenced the department's position on gray wolves. However, based on the UCS survey and the investigation by the Office of the Inspector General, it is clear that the USFWS was facing intrusions into listing related scientific determinations around the time of the first proposed delisting of the gray wolf (February 2007). It is also clear that the DOI had a practice of sending rules to the Federal Register even if they had legal issues. Thus, it is plausible, because of the extremely high-profile nature of the gray wolf, that political factors could have played a role in the delisting rule which had clear scientific and legal shortcomings.

While federal agencies are not directly beholden to the public in their rulemaking, it is also worth noting that wolves, and the listing of wolves, have enjoyed positive public support. Another study shows that

the listing of wolves has not negatively affected the public's opinions of the ESA (Bruskotter et al., 2018). Bruskotter et al. (2018) used survey data and conducted a new survey to test the following questions: first, has support for the ESA among the American public changed over time? Second does long-term listing of controversial species such as wolves do the following: increase opposition to the ESA, negatively affects trust in implementing agencies, and/or create resentment towards the species being protected? Their results suggest that the ESA has retained its very high popularity over time, that long term listing of wolves has not decreased support for the ESA, and that attitudes towards wolves are generally positive and do not differ from states in which wolves live to the rest of the United States (Bruskotter et al., 2018). These findings suggest that while an outspoken minority or interest group may capture the attention of policymakers, wolves are viewed favorably by the public—even in regions which are inhabited by wolves. While these specific findings do not speak to public attitudes at the time of the original push for delisting, two other studies also suggest that the public viewed wolves and wolf reintroduction favorably during the time period leading up to the delisting (Meadow et al., 2005; Williams et al., 2002).

5. Policymaker response to listing fluctuation and ESA concerns

Reactions by certain policymakers do not take into account the role of the USFWS in the conflict, as well as the larger systemic issues administrative law currently faces. In July 2018, the Congressional Western Caucus introduced an ESA modernization package. The proposed overhaul includes legislation that would not solve the problems we have witnessed in this listing fluctuation, and would hurt the ESA's overall ability to protect animals. The rationale for many of the policymakers for this modernization is that the ESA is being abused by environmental interest groups and “activist attorneys,” and in one statement, a lawmaker mentioned the gray wolf cases specifically (<https://westerncaucus.house.gov/issues/issue/?IssueID=14890>). These reactions miss the broader picture. They do not address the delisting decisions that were arbitrary and capricious as well as agency complicity in the adversarial system, and they ignore literature that suggests that industry groups litigate with far more frequency than environmental groups and have more influence than other groups (Coglianese, 1996; Yackee and Yackee, 2006; West and Raso, 2013). Lastly, these reactions ignore evidence that wolves and the ESA enjoy public support, even in states that have wolf populations.

The legislative package mentioned above and other recent legislation from the Senate includes bills that would delist WGL wolves and preclude judicial review (S. 831); delist wolves in the lower 48 states and preclude judicial review (H.R. 6784); create a cap on the possible federal reimbursement available to interest groups after a successful challenge in federal court (H.R. 3608); prevent the payment of any attorney's fees to all Federal Government settlements under the Clean Air Act, the Clean Water Act, and the Endangered Species Act (H.R. 6147 House Amendment 933); predetermine that tribal, county, and state scientific studies automatically be considered a part of the “best scientific and commercial data available” regardless of their quality (H.R. 3608; S. 502); and require states and counties affected by a possible listing to see if the chief executive of that state believes listing is warranted, and if they believe it does not warrant protection, the USFWS must provide evidence to the contrary (H.R. 6345). As explained earlier, delisting animals through legislation and precluding judicial review—especially through policy riders—is undesirable. These efforts, along with bills that restrict the ability for interest groups to be reimbursed under the Equal Access to Justice Act, unfairly focus on one side of the overall conflict. Furthermore, the last two bills seem especially ill-advised when considering some state governments' extremely negative responses to the listing of the gray wolf—including the symbolic nullification of the entire Endangered Species Act by the Montana State Legislature in 2011 (Fitzgerald, 2011). Lastly, H.R. 6345, the

EMPOWERS Act, would increase the workload of the USFWS substantially, which has already been shown to be over-burdensome.

Another bill, the PETITION act of 2018 (H.R. 6355), would attempt to solve the issue of deadlines and workload by allowing the Secretary to declare a petition backlog. While this bill has the potential to alleviate some of the pressure on the USFWS, some concerns note the importance of deadlines in the listing of extremely vulnerable species whose time is already limited, and in the preclusion of judicial review (<https://www.perc.org/2018/09/26/modernization-of-the-endangered-species-act/>). It is important to note as well that the current administration's proposed USFWS budget is \$1.3 billion, which is the same amount as the proposed USFWS budget in 2006 (actually less when considering inflation), and is a \$300 million decrease from 2017 (<https://www.doi.gov/ocl/budget-request-fws>; <https://www.fws.gov/budget/>). As this paper discussed earlier, the Office of the Inspector General investigation report concluded that the USFWS could not fulfill their duties properly with the same budget in 2006. Furthermore, the survey by the Union of Concerned Scientists showed that the USFWS scientists themselves were very concerned with the low funding levels at that time too (UCSa, 2005a). Instead of increasing the agency's budget to respond to an increased demand for the protection of new endangered species, the PETITION act would allow for more delay. As there is evidence that species extinctions are increasing with climate change and human activity (Pimm et al., 2014), it seems reasonable to expect a higher workload for the USFWS, which would also necessitate a higher budget.

There have been policy changes coming from the executive branch too. In August of 2019, the USFWS implemented new rules that allow economic assessments to be made during the consideration of the listing of new species (<https://www.doi.gov/pressreleases/endangered-species-act>). These assessments would not be allowed to directly influence listing decisions. However, the creation of these reports encourages policymakers and the larger public to view the protection of species in terms of dollars and cents. This would likely increase opposition to the listing of new species.

6. Conclusion and recommendations

This paper has attempted to identify the systemic failures surrounding the long-term ESA listing fluctuation of the gray wolf. This listing fluctuation arose out of multiple arbitrary, improper, and premature delisting decisions by the USFWS. Viewed more broadly, we can see that the gray wolf legal saga, and more generally ESA implementation, suffers from the inefficiencies of the American adversarial approach to law and policy formulation. While some maintain that the litigants are responsible for this adversarial style, and thus the costs and inefficiencies that come with it, this paper attempts to show how federal agencies can contribute to the system's adversarial nature evidenced by the DOI practice of sending rules to the federal register with knowledge of their legal shortcomings. Moreover, previous scholarship has identified the various ways that federal agencies can benefit from litigation disputes. Because this paper has the limited approach of solely focusing on gray wolf cases, more research should be done on the effect of such incentives on federal agency rulemaking.

This paper has also analyzed the policymaker response to this fluctuation and other ESA concerns, which, for the most part, is found to be inadequate. Many policymakers have focused their attention on restricting the access of interest groups to federal funds for attorney's fees, continuing the push to legislatively delist gray wolves, and creating burdensome requirements for more state input that would further decentralize control over the ESA. While the PETITION act could help solve the burdensome workload at the USFWS, it presents its own issues of precluding judicial review and prolonging decisions for species whose time is already limited. Meanwhile, the current administration has kept the USFWS budget at the exact same amount as 2006 when agency staff were overworked and underfunded. Moreover, when

taking inflation into account, the 2019 budget amounts to an overall decrease. The current administration has also started the practice of economic assessments of potential listing decisions, which will likely increase opposition to future listings.

In the second edition of *Adversarial Legalism: The American Way of Law*, Robert Kagan (2019) writes of the necessity of reforms that “strike a delicate balance,” so as to “retain the system’s virtues,” while “tam[ing] its vices.” He continues, writing, “the legal changes wrought by Republican political leaders and judges in the early twenty-first century have not seemed calibrated to strike that balance,” and that their reforms “usually strike me as one-sided, aimed at simply stopping litigation and protecting corporate interests, with little concern for how much these changes also block meritorious lawsuits and regulatory requirements” (Kagan, 2019). This latest push, which has mostly been proffered by Republican lawmakers but has also included some Democrats, seems to continue this trend noted by Kagan—especially the preclusion of judicial review and the attempts to eliminate or reduce reimbursement of attorney’s fees.

This paper will conclude with policy recommendations specifically for gray wolves as well as for the ESA. First, the USFWS and the broader administration should push states to increase their wolf population minimums (the population threshold which states commit to keeping wolf populations above), which drive much of the concern about delisting (Fitzgerald, 2011). Second, Congress should not continue to legislatively delist animals—especially through controversial means such as policy riders. Scholars have noted the drawbacks of creating policy through riders (Fitzgerald, 2011; Devins, 1987). Third, Congress should not preclude judicial review under any circumstance; there are other ways of decreasing the adversarial nature of environmental law other than preventing citizens and interest groups the right to challenge an arbitrary policy. Fourth, the USFWS must ensure that science alone is determining listing and delisting policy.

The USFWS could also experiment with negotiated regulation for delisting decisions. While some scholars have doubted the efficacy of negotiated regulation rulemaking (Coglianese, 1997) others have noted that it can decrease conflict between the regulators and the regulated entities (Freeman and Langbein, 2000). Furthermore, studies suggest that rules produced through negotiated regulation are viewed more positively by participants than rules made through conventional regulation (Freeman and Langbein, 2000; Langbein and Kerwin, 2000). With the goal of eventual, appropriate delisting, those in favor of keeping the animal listed could present what is necessary to happen for a proper delisting. In the case of the gray wolf this could have included higher state wolf population minimums and evidence of genetic connectivity. Other groups, then, could present arguments as to why the animal should be delisted. This could inform the USFWS of the concerns of potential litigants, and allow them to make a more informed decision.

Lastly, it seems appropriate to increase the USFWS budget to respond to the current need: studies suggest that there is an increase of species extinction (Pimm et al., 2014). If the USFWS cannot manage the amount of petitions that are being created, the solution is not to allow for these petitions to sit on the bureaucratic backburner by declaring a backlog. The PETITION Act would allow for lengthy delays and disincentivize the efficient listing of species that require protection. Rather, Congress should give the USFWS the tools it needs to properly implement the ESA as it was intended and as it still functions.

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